

		against which protection was sought on those terms and conditions that are just.” (Code Civ. Proc., § 2025.420(g).) Liu fails to demonstrate good cause to prohibit or limit the conditions of her deposition. Her claim that she has no new information beyond what the parties possess is unpersuasive. Liu provides no information with which the Court may evaluate her claim. Further, the Defendant has the right to test Liu’s assertion. The Court finds the document requests are overbroad as to time, thus, limits each request to documents from 2020 to present. Accordingly, Liu is ordered to appear to her deposition and produce responsive documents. <u>Motion to Compel Deposition</u> Defendant Caesar Global Alliance, Inc.’s Motion to Compel Non-Party Xuying Liu’s Attendance at Deposition is DENIED as MOOT. This Court has already ordered Liu to appear. Additionally, Defendant’s request for sanctions is denied. Defendant filed its motion after there was a pending motion for protective order, thus, there was substantial justification in opposing the motion.
6	25-01477832 <i>Gutierrez vs. Spieckerman</i>	1) Motion for Protective Order 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Answers to Special Interrogatories Defendants’ Motion for a Protective Order is DENIED as moot. Plaintiff’s Motions to Compel are GRANTED, in part, and DENIED, in part. Defendants Paul Spieckerman and Jessy Trostle move for a protective order that plaintiff’s special interrogatories, set two, (SROG) consisting of 140 interrogatories per defendant, need not be answered in their entirety, and for monetary sanctions against Genaro Gutierrez Jr. and his counsel of record in the amount of \$1,990. Plaintiff Genaro Gutierrez Jr. moves for an order compelling Paul Spieckerman and Jessy Trostle to provide verified responses to the same SROGs, without objection, and for monetary sanctions in the amount of \$7,095 against each defendant and their counsel of record. On 6/11/26, the court continued the hearing on these motions and required the parties to meet and confer further. According to the Joint Statement of Items in Dispute and Parties’ Respective Positions, the parties agreed that defendants need only answer 48 interrogatories, i.e., nos. 47-50, 59-62, 67-70, 83-86, 87-90, 91-94, 95-98, 99-102, 118-121, 130-133, 150-153, and 178-182. The parties also agreed to withdraw their respective requests for monetary sanctions. Therefore, Defendants’ motion for a protective order is moot and therefore denied.

	As to Plaintiff's motions to compel, the only issue that remains is whether filing a motion for a protective order preserved Defendants' objections or whether their objections have been waived because they did not serve responses by the 30-day deadline. Defendants argue the filing of the motion for a protective order preserves their right to state necessary objections to the interrogatories even if a court orders responses. Defendants also argue the court should hold that because of the productive negotiations and agreements memorialized by the parties, plaintiff's motions to compel are now moot and defendants should be permitted to submit verified, substantive responses to the agreed discovery without having to waive specific necessary objections. Plaintiff informs the court that Defendants have not yet served the agreed upon responses. Plaintiff therefore contends the motions are not moot and asks the court to order responses to SROG, nos. 47-50, 59-62, 67-70, 83-86, 87-90, 91-94, 95-98, 99-102, 118 121, 130-133, 150-153, and 178-182 without any objections. Plaintiff argues a protective order does not relieve a responding party from the obligation to serve a response or, at the very least, an objection. Plaintiff also argues that Defendants have not met the requirements set forth in Code of Civil Procedure, section 2030.290 for relief from waiver of objections. The court agrees. "Within 30 days after service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party, . . . unless on motion of the responding party the court has extended the time for response." (§ 2030.260, subd. (a).) The parties may also agree in writing to extend the deadline to respond. (§ 2030.270, subds. (a), (b).) Failure to serve timely responses waives "any objections, including one based on privilege or on the protection of work product . . . The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: [¶] (1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240. [¶] (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." (§ 2030.290, subd. (a).) When interrogatories have been propounded, the responding party . . . may promptly move for a protective order" (Code Civ. Proc., § 2030.090, subd. (a).) Here, Defendants' responses to the SROGs were due on 12/23/25. Instead of serving responses, Defendants filed and served a motion for a protective order the day they were due. It is undisputed that Defendants neither obtained an agreement from Plaintiff nor a court order extending the deadline. To date, Defendants have not served responses.
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		Defendants have not cited any authority supporting their proposition that filing a motion for a protective order preserves their objections. Nor is the court aware of any. As the leading treatise on civil pretrial procedure cautions: “Protective orders usually are sought ‘under the gun’ because responses are due. If the opposing side is unwilling to stipulate to an extension, you may have to obtain a court order shortening the time for hearing or extending the time to respond until after the hearing on the protective order (<i>in order to avoid waiver of any objections</i>)[.]” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group, 2026), ¶ 8:1007, p. 8F-4 [emphasis added].) Further, Defendants have not satisfied the requirements to obtain relief from waiver of their objections under section 2030.290, subd. (a). Accordingly, the court finds Defendants waived their objections to the SROGs, including ones based on privilege or on the protection of work product. Based on the foregoing, Plaintiff’s motions to compel are granted, in part, as to nos. 47-50, 59-62, 67-70, 83-86, 87-90, 91-94, 95-98, 99-102, 118 121, 130-133, 150-153, and 178-182. The motion is denied, in part, as to the remaining SROGs and the request for sanctions. Defendants are ordered to serve verified responses, without objections, to plaintiff’s special interrogatories, set two, nos. 47-50, 59-62, 67-70, 83-86, 87-90, 91-94, 95-98, 99-102, 118 121, 130-133, 150-153, and 178-182, within 14 days.
8	24-01400761 <i>National Funding, Inc. vs. Slide & Ride LLC</i>	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record The motions of attorney Jefferey P. Boykin to withdraw as attorney of record for Defendants David King and Slide & Ride LLC is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for clients effective upon filing of a proof of service of the signed order on clients. Moving attorney is to give notice.
9	25-01485328 <i>Rideout vs. MT Power Group</i>	Motion for Summary Judgment and/or Adjudication Defendant MT Power Group’s Motion for Summary Judgment is GRANTED. Defendant’s request for judicial notice of the Complaint, although not necessary, is granted. The Court declines to rule on Defendant’s objections to portions Plaintiff’s deposition because the objections are not dispositive to the motion. “The existence of a duty owed by a defendant to a plaintiff is a question of law for the court” (<i>Garcia v. Paramount Citrus Assn., Inc.</i> (2008) 164 Cal.App.4th 1448, 1453.) “In determining whether a duty should be imposed in a particular case, a court must consider the following factors in the circumstances of the case: the foreseeability of harm to the injured party, the degree of certainty that party has suffered injury, the closeness of the connection between the condition of the property and the injury, the moral blame attached to the landowner’s conduct, the policy of